

GRANADA v PRIETOS ROOF REMOVAL, INC., et al.

21CV45760

DEFENDANT'S MOTION TO SET ASIDE DEFAULT

Plaintiff's complaint seeks damages for breach of contract, violation of state contractors board, and negligence..

The Complaint was filed December 27, 2021, and service effected on defendant Prietos' designated agent for service Claudia Rivas) on 1/07/2022. As defendant correctly points out, the amended complaint filed on 3/11/2022 was never served on Prietos; however, the Court concurs that the amended complaint did not amend in any way that would materially affect defendant Prieto. Therefore the Court reads *Paterra v Hansen* (2021) 64 CalApp 5th 507 as allowing a reasonable assumption that Prieto had chosen a course of action to allow a default to be entered. (*id.*, at 529-530.) Defendant's Motion to Set Aside Default was filed on November 29, 2023.

While California Code of Civil Procedure ("CCP") Section 473.5 authorizes the court to set aside a default or default judgment on such terms as may be just and to allow the defendant to defend the action on a finding that the defendant's motion to set aside the default or default judgment was made within the period permitted by CCP § 473.5(a), the Court also concurs with the position of the Opposition that the present motion is untimely under CCP Section 473, finding it was filed significantly beyond the six months allowed by statute. While an argument can be made that the six months did not start until the default judgment, the Court again is persuaded by the position of the opposition that this interpretation would place form over substance. Prieto had a six month window within which to seek relief from the default; by the time of the judgment, the default was well in place and the judgment was in essence an administrative act.

Based on the foregoing, defendant's Motion to Set Aside Default is **DENIED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

WELLS FARGO BANK, N.A. v DAVIS

23CF14230

PLAINTIFF'S MOTION TO DEEM MATTERS ADMITTED

This action seeks breach of contract and common counts damages based on alleged nonpayment of a credit card account. Plaintiff served Requests for Admission on February 6, 2024; defendant has never responded.

If the propounding party believes that the responses to Requests for Admission are deficient in some respect or that any objections are without merit or are unaccompanied by a proper response, they may make a motion to compel further responses under Code of Civil Procedure (CCP) § 2033.290. (See *Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618, 636; *Tobin v. Oris* (1992) 3 Cal.App.4th 814, 829, fn. 25.) Appropriate sanctions may include an order deeming matters admitted (CCP Section 2033.290(e)).

Defendant failed to timely respond to the requests for admission, respond to plaintiff's meet-and-confer efforts, or respond to the present motion. The Court finds this wanton disregard for the discovery process warrants the sanction of deeming all requests admitted.

Based on the foregoing, Plaintiff's Motion to Deem Matters Admitted is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court intends to sign the Order submitted by plaintiff.